

Art. 16 Right to rectification (66.0%), Consent (64.0%), Data Controller (92.8%), Data Subject (62.0%), Legal Basis (95.6%), Non-Personal Data (94.5%), Not Required Purpose (64.5%), Organisational Measure (89.5%), Personal Data (94.3%), Processing (93.2%), Recipient (82.7%), Required Purpose (93.3%), Retention (91.3%):

PRIVACY POLICY Last update: November 06, 2024 PRIVACY POLICY Ferrero International S.A, ("Ferrero"), has conceived the Appplaydu software application ("App") to bring playful learning to children and adults, providing parents with a trustworthy content provider which allows them to establish a complete and direct control over their children amusement experience, thus aiming to engage the whole family network and reinforce the family bonds.

Data Controller (86.4%), Data Subject (70.0%), Organisational Measure (64.3%), Personal Data (96.5%), Processing (97.8%), Required Purpose (84.5%), Retention (72.3%):

To enable you to use our App, we need to process some data that is personal, like, e.g., your e-mail address for registration (*if the registration functionality is available).

Legal Basis (73.9%), Non-Personal Data (64.7%), Personal Data (70.5%), Processing (99.1%):

By using our service, you agree to be bound by this Privacy Policy, which describes our practices related to the use, storage and disclosure of information we collect from or about you or your children through our App.

Consent (88.4%), Data Controller (90.7%), Personal Data (99.8%), Processing (96.9%), Required Purpose (91.6%):

We take your trust and privacy very seriously and therefore aim to process as little personal data as necessary, committing ourselves to a proper and legitimate processing of the same.

Art. 17 Right to erasure (right to be forgotten) (85.3%), Personal Data (63.6%), Processing (97.9%):

"Processing" means using or touching information in any way, including, but not limited to, collecting, storing, deleting, using, combining and disclosing information.

Organisational Measure (75.6%), Right (83.4%):

Ferrero reserves the right to modify this Privacy Policy at any time and without prior notice.

Consent (93.8%), Legal Basis (65.9%), Processing (94.8%):

If we make material changes to this Privacy Policy, we may notify you in a more prominent manner and (where appropriate) seek to obtain your prior consent, or the consent of a parent or legal guardian.

Right (90.0%):

This Privacy Policy is not a contract and does not create any legal rights or obligations.

Non-Personal Data (83.8%), Processing (88.8%), Required Purpose (96.8%):

Purpose The App processes data for the purpose of: (i) operating the service; (ii) sending you e-mail with information about your game progresses and activity; (iii) sending you, with your prior consent, e-mail newsletters for marketing promotions performed by Ferrero and our affiliates; (iv) carrying out research activities; (v) improving the contents of the App (through data analytics and results of research activities); and (vi) to follow up on abuse reports and cooperate with law enforcement.

Consent (83.8%), Not Required Purpose (72.5%), Recipient (98.1%), Third Party (97.1%):

We do not sell or otherwise distribute your personal data to third parties and will not send you any commercial proposals unless expressly authorized to do so.

Consent (73.8%), Retention (74.5%):

Even when you authorize us to send you our proposals, you are free to opt out at any time.

Processing (95.7%), Required Purpose (94.8%):

To evaluate the use of our service as well as for statistical purposes, only anonymised data shall be used.

Required Purpose (79.6%):

6(1)(b) GDPR a this means that we need to process your personal data in order to perform a service you have requested from us.

Required Purpose (99.7%):

6(1)(b) GDPR a as above, where you ask us to send you these e-mails within the App, we need to process your personal data to provide you with this service.

Consent (91.3%):

When processing data to send you e-mail newsletters, we rely on your consent, under Art.

Legitimate Interest (94.9%), Required Purpose (70.7%):

6(1)(f) GDPR a in other words, our legitimate interests in carrying out research activities; When processing data for the purpose of improving the service, we rely on your consent, under Art.

Legal Basis (92.1%):

6(1)(c) GDPR, as such activities will only be carried out to the extent that we are legally obliged to provide this cooperation.

Personal Data (99.4%), Required Purpose (88.3%):

No personal information is requested through the registration process as mandatory in order to be able to use the basic features of the App.

Required Purpose (89.3%):

Further information shall be requested as optional upon registration or after parent verification, in

order to allow you to use some of the features offered by the App (such as resuming or saving your game progress and activity).

Legal Basis (82.7%), Personal Data (88.2%), Processing (89.0%):

The registration process is currently intended for and directed to parents/grown-ups within the parent section of the App and utilizes Children's Online Privacy Protection Act (COPPA)-compliant procedures to allow for the collection of certain account information from parents with verification of a parent's year of birth.

Personal Data (98.4%):

When you register with us (*if the registration functionality is available) and use the App, you generally provide (a) your year of birth and email address; (b) information you provide us when you contact us for help.

Required Purpose (76.2%):

We may also use the information you provided us to contact you from time to time to provide you with important information, required notices and, with your prior consent expressed during registration (*if the registration functionality is available), marketing promotions.

Consent (70.8%):

When you access these sections, a pop-up will ask you to allow the App permission to access the relevant parts of your device.

Consent (74.1%):

If you deny or remove this access, those sections of the App may not work fully as intended.

Personal Data (76.0%), Processing (90.5%), Third Party (98.0%):

Certain sections of the App also allow photographs and videos to be taken, which may capture personal data related to the user of the device, or to third parties.

Automated Decision Making (94.7%), Non-Personal Data (93.2%), Personal Data (96.1%):

Automatically Collected Information In addition, the App may collect certain information automatically, including, but not limited to, the type of mobile device you use, your mobile unique device ID, the IP address of your mobile device, your mobile operating system and language, the type of mobile Internet browsers you use, and information about the way you use the App (such as information about your game progresses and activity).

Processing (98.0%):

Please note that certain sections of the App will ask for access to parts of your device a namely, the camera, the microphone and the storage.

Non-Personal Data (65.5%):

The App may access certain device information and/or components automatically.

Required Purpose (92.8%):

This collection is only for the purpose of providing the services within the App you choose to use.

Personal Data (62.6%), Required Purpose (86.9%):

A push notification token will be used to send push notifications to your mobile device with updates and suggestions upon request (e.g., through scanning QR codes) or automatically (e.g., by means of audio watermarks).

Required Purpose (81.0%), Technical Measure (80.2%):

The Project aims to investigate the use of technology to support children's learning by using the App as a research tool.

Processing (98.2%):

In the context of the Project, Ferrero will share some limited details related to how you/your children use the App (for example, the average time spent on the App, progress made on the App, levels achieved, features used, and so on) with the University of Oxford.

Non-Personal Data (71.1%), Personal Data (85.0%):

Only these details will be associated with a pseudonymized ID number assigned to you as a user, which will not allow the University of Oxford to specifically identify you or your children; this will only allow the University of Oxford to distinguish the details related to you from those related to other App users.

Processing (86.7%), Retention (90.3%):

The email address you provided will be deleted once you completed the survey or, in case you will not fill out the survey, after 30 days.

Non-Personal Data (65.1%), Processing (98.7%):

The answers which you may provide in these surveys will be shared with the University of Oxford and matched with the pseudonymized ID number assigned to you as a user.

Processing (71.0%), Retention (85.9%):

Your survey answers may be retained for up to 3 years after publication of the Project's findings and then deleted.

Data Controller (69.5%), Right (61.1%):

Research Activities a Learning for Families Through Technology During your use of the App, you may be asked to participate in a research project entitled aLearning for Families through Technology (aProjecta), which is led by The Chancellor Masters and Scholars of the University of Oxford (aUniversity of Oxford).

Data Controller (61.2%):

Both Ferrero and the University of Oxford act as joint controllers for the processing of personal data related to the Project.

Consent (84.1%), Processing (92.3%):

6(1)(f) GDPR, regarding the sharing of limited details related to how you/your children use the App; and Your consent, under Art.

Personal Data (99.4%), Processing (91.8%), Technical Measure (92.6%):

Does the App collect and track any personal data such as face data through the use of TrueDepthAPI?

Processing (98.8%), Required Purpose (95.2%):

The App uses the device's TrueDepthAPI camera system to track the movement of the face.

Required Purpose (97.8%):

This allows for a unique user experience embodying your favourite character.

Required Purpose (85.1%):

In order for this functionality to be possible, the App requires access to your device's camera.

Personal Data (68.3%), Processing (96.1%):

We do not collect, store or share data used by software for depth of facial mapping information, TrueDepthAPI locally or remotely.

Personal Data (89.2%):

Does the App collect precise real time location information of the device?

Personal Data (88.1%):

This App does not collect precise information about the location of your mobile device.

Technical Measure (98.2%):

Do we use cookies or similar technologies on the App?

Processing (78.0%), Technical Measure (95.8%):

Cookies are small text files that the sites visited send to you and store on your computer or mobile device, and which will be returned to these same sites on each new visit.

Non-Personal Data (93.2%), Processing (90.9%):

Thanks to these cookies, a site remembers your actions and preferences (for example connection data, preferred language, font dimensions, other display settings, etc.) so that you do not have to need to specify them again when you return to the site or consult another page on the same site.

Technical Measure (95.0%):

The App generally does not use cookies or similar tracking technologies.

Data Controller (89.0%), Technical Measure (78.9%):

However, in the context of the Project carried out with the University of Oxford, we use Google's reCAPTCHA tool, which will set cookies on your device when you choose to participate in a Project-related survey.

Required Purpose (95.8%):

These cookies serve to detect if the survey is being answered by a human or by a bot.

Required Purpose (93.7%):

As such, they are primarily used for security purposes.

Processing (64.8%), Required Purpose (83.5%):

However, Google may also use these cookies to gather additional information from App users for the purpose of improving its own services and products.

Personal Data (96.0%), Processing (99.1%):

Google acts as the sole controller for any personal data collected for these latter purposes. Please consult Google's Privacy Notice for more information on how Google may handle your personal data.

Consent (81.1%):

This consent can be refused or withdrawn through that same banner, or through the cookie management tools offered on the survey website.

Processing (91.4%):

Do third parties see and/or have access to information obtained by the App?

Non-Personal Data (94.8%), Processing (74.1%), Recipient (87.0%):

On a normal basis, only aggregated, anonymized data is periodically transmitted to external services to help us improve the App and our service, e.g., maintenance and hosting services.

Non-Personal Data (79.9%), Personal Data (79.5%):

User Provided Information The App obtains the information you provide when you download and register within the App (*if the registration functionality is available).

Data Processor (60.7%), Required Purpose (84.1%), Third Party (63.6%):

We may disclose User Provided Information and/or User Automatically Collected Information: as required by law, such as to comply with a subpoena, or similar legal process; when we believe in good faith that disclosure is necessary to protect our rights, protect your safety or the safety of others, investigate fraud, or respond to a government request; with our trusted services providers who work on our behalf, do not have an independent use of the information we disclose to them, and have agreed to adhere to the rules set forth in this privacy statement; with our research

partners, including the University of Oxford (in the context of the Project, as explained above).

Consent (85.0%), Organisational Measure (71.8%):

If Ferrero is involved in a merger, acquisition, or sale of all or a portion of its assets, you will be notified via a prominent notice on our Website of any change in ownership or uses of this information, as well as any choices you may have regarding this information.

Required Purpose (97.7%):

Other than the above, limited internal staff at Ferrero may have access to personal data collected via the App, as necessary to perform their duties regarding the operation of the App.

Processing (92.6%):

These data will only be accessed on a need-to-know basis, and all staff members with access to the data are bound to confidentiality.

Non-Personal Data (62.7%):

Moreover by using ML Kit a Face detection in our App, Google might access metrics data, which are non-personal data.

Required Purpose (99.2%):

Google uses this metrics data to measure performance, debug, maintain and improve the APIs, and detect misuse or abuse, as further described in their Privacy Policy.

Personal Data (90.9%):

images, video, text) fully happens on-device, and ML Kit does not send that data to Google servers.

Required Purpose (77.1%):

In addition to conversion events, it might also be used for frequency capping, estimating the number of unique users, debugging, or security and fraud detection.

Personal Data (97.0%), Processing (92.8%):

When you use the App, a unique ID (which varies by device manufacturer and operating system) is read from or associated with your device to be used as an anonymous identifier for analytics and performance purposes.

Processing (97.1%), Required Purpose (97.2%):

We don't store the ID, or share the ID or other unique information collected or used by the app with third parties, except for service providers whose analytics product generates this ID to track and analyse the performance and the quality of our App.

Required Purpose (95.0%):

We do not use information gathered within the App to serve you targeted advertisements.

Organisational Measure (94.4%):

Your rights You can stop all collection of information by the App easily by uninstalling the App.

Right (84.2%):

See below for parental rights with respect to children's data.

Consent (86.0%):

You can withdraw your consent to receive email newsletters at any time, by adjusting the preferences you set on the App or by clicking on a link available in each communication and newsletter we send you.

Authority (88.7%), Lodge Complaint (79.5%):

You are entitled to file a complaint with the competent supervisory authority, in the event that you deem any aspect of our processing of personal data to be unlawful.

Authority (68.2%):

For these purposes, you can reach out to: The Luxembourg National Data Protection Commission (the supervisory authority within Ferrero's place of establishment); or The competent supervisory authority within your area of residence or place of work, within the EU/EEA.

Organisational Measure (64.7%):

Data processor Ferrero has chosen some third parties to assist us in processing your personal data, we have taken reasonable steps to ensure that they comply with this Privacy Policy and otherwise protect your personal data.

Authority (80.5%), Contract (60.8%), Scale EU (83.8%), Third Party (69.2%):

The Article 29 Working Party (the independent advisory board made up of representatives from the data protection authorities of all the EU Member States as well as from the European Commission) has approved the AWS Data Processing Agreement, which includes the Model Clauses.

Legal Basis (67.0%):

The Article 29 Working Party has found that the AWS Data Processing Agreement meets the requirements of the Directive with respect to Model Clauses.

Required Purpose (95.9%):

Analytics information is used to support Ferrero analysis and operations, to enable product development and to improve our APP and services.

Data Controller (93.9%):

Ferrero has chosen Gameloft SE as software developer for maintenance and for the improvement of the APP; it may therefore have access from time to time to some collected data.

Retention (87.0%):

Data Retention Policy, Managing Your Information When you register on the App (*if the registration

functionality is available), we will send you an e-mail so that you can confirm your registration.

Retention (96.0%):

If you do not confirm your registration right away, we will keep the User Provided Information you shared with us during your registration for a period of 4 days, before erasing it (unless you confirm your registration in the meantime).

Retention (98.3%):

After you have confirmed your registration, we will retain User Provided Information for as long as you use the App.

Processing (77.2%), Retention (93.5%):

If your account remains inactive for a consecutive period of 12 months, we will erase the User Provided Information we have on you (unless further retention is needed to meet our legal obligations, or to address legal claims) and we will send you an e-mail notice of this 1 month before deletion is to take place.

Retention (98.0%):

After you have confirmed your registration on the App (*if the registration functionality is available), we will generally retain User Provided Information for as long as you continue to use the App.

Personal Data (77.2%), Processing (97.6%), Retention (90.0%):

Photographs which are taken using the App are stored locally, on the App's memory of your device and they will be retained until the App is uninstalled.

Personal Data (91.9%), Processing (93.3%):

Other images which may be generated using the App (such as drawings or images of QR codes) may be stored on the App's memory (in which case, the above applies) or on your device's camera roll and in this case, you can delete those images at any time through your device.

Retention (63.5%):

If your account remains inactive for a consecutive period of 12 months, we will erase the backup of your data.

Retention (83.6%):

We will retain Automatically Collected Information for up to 12 months and thereafter may store it in aggregate form.

Personal Data (99.5%):

Personal data collected in the context of research activities (*if the functionality is available) (including User Provided Information, Automatically Collected Information and answers to surveys, for example) will be pseudonymized or aggregated as soon as this is feasible without compromising

the goals of the specific research project for which they are collected.

Personal Data (70.4%):

No personal information should be submitted by Children and their real name or any information should never be used in the feature of the App (such as the creation of an avatar).

Legal Basis (92.4%), Organisational Measure (70.1%):

If we were to collect and store personal information from children under the age of 18A in connection with a feature inside the App, we will first take steps to notify and obtain prior consent from a parent or legal guardian in accordance with applicable laws such as the COPPA, unless an exception to these laws applies.

Organisational Measure (86.9%):

We would also give parents the ability to review their children's personal information, stop the further collection or use of such information, or request its deletion.

Organisational Measure (92.0%):

We have established physical, electronic, managerial and procedural safeguards to protect the information we collect, process and maintain.

Organisational Measure (81.3%), Required Purpose (89.3%):

These safeguards are regularly reviewed to protect against unauthorized access, disclosure and improper processing of your information, and to maintain the accuracy and integrity of that data.

Organisational Measure (67.2%), Required Purpose (95.5%):

For example, we limit access to this information to authorized employees and contractors who need to know that information in order to operate, develop or improve our App.

Legal Basis (78.2%), Processing (81.6%):

For technical and operational reasons, personal data can be transferred through servers which are located outside the European Union, where the European data protection rules are not applicable.

Organisational Measure (72.7%):

We will notify you of any material changes to our Privacy Policy by e-mail.